

#	Case Name	Tentative Ruling
101	Aguilera vs. Diversified Maintenance Systems, LLC, 2025-01528656	Demurrer to Amended Complaint – OVERRULED Defendant B. BRAUN MEDICAL INC. demurs to all causes of action in Plaintiff’s first amended complaint. The demurrer is overruled. There are sufficient facts pled to put Defendant on notice of the claims against it, including allegations of being a “joint employer”. Plaintiff shall answer the first amended complaint within 20 days. Plaintiff to give notice.
102	Ascher & Associates, P.C. vs. Boyajian, 2024-01447465	Demurrer to Complaint – SUSTAINED WITHOUT LEAVE TO AMEND Defendant, Robert Boyajian, as personal representative of the Estate of Layla Boyajian (“Defendant”), demurs to the Complaint for Declaratory Relief and Enforcement of Attorney Lien of Plaintiff, Ascher & Associates, P.C. (“Plaintiff” or “AAPC”). The demurrer to the Complaint is SUSTAINED, without leave to amend. <u>Res Judicata</u> “[I]f all of the facts necessary to establish that an action is barred on res judicata grounds appear on the face of the complaint, the complaint is subject to demurrer.” (Brosterhous v. State Bar (1995) 12 Cal.4th 315, 324.) A demurrer can only be used to challenge defects that appear on the face of the pleading or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) No other extrinsic evidence can be considered. (Ion Equip. Corp. v. Nelson (1980) 110 Cal.App.3d 868, 881.) The doctrine of res judicata has two aspects: claim preclusion and /issue preclusion/collateral estoppel. (People v. Barragan (2004) 32 Cal.4th 236, 252.) “Claim preclusion ‘prevents relitigation of the same cause of action in a second suit between the same parties or parties in privity with them.’ [Citation.] Claim preclusion arises if a second suit involves: (1) the same cause of action (2) between the same parties (3) after a